



2007-04101

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Requested By: LAWYERS TITLE-MOGALES

SUZANNE SAINZ, RECORDER

SANTA CRUZ COUNTY, ARIZONA

03-23-2007 01:10 PM Recording Fee \$20.00

WHEN RECORDED MAIL TO:

**Michael and Judith Steinhardt
650 Madison Avenue
New York, New York 10022**

1579954-A14

**DO NOT REMOVE THIS COVER SHEET. IT IS NOW PART OF THE RECORDED
DOCUMENT.**

DEED OF TRUST AND ASSIGNMENT OF RENTS

1579954-A14

Date: 3.22, 2007

TRUSTOR: GLOBAL COMMUNITY COMMUNICATIONS ALLIANCE,
an Arizona Non-Profit Corporation
whose address is: P. O. Box 3946
Sedona, AZ 86340

TRUSTEE(S): LAW OFFICES OF ESSER BRADLEY & WALLACE
whose address is: 1785 W. Highway 89A, Suite 2-I
Sedona, AZ 86336

BENEFICIARIES: MICHAEL and JUDITH STEINHARDT
whose address is: 650 Madison Avenue, New York, NY 10022

Property located in Santa Cruz County, Arizona, described as follows:

SEE EXHIBIT "A"

WITNESSETH: That Trustor irrevocably grants and conveys to Trustee in Trust, with Power of Sale, the above-described real property together with the leases, rents, issues, profits or income thereof (all of which are hereinafter called "property income"), SUBJECT, HOWEVER, to the right, power and authority hereinafter given to and conferred upon Beneficiary to collect and apply such property income; AND SUBJECT TO existing taxes, assessments, liens, encumbrances, covenants, conditions, restrictions, right-of-way, and easements of record.

FOR THE PURPOSE OF SECURING (a) performance of each agreement of Trustor herein contained; (b) payment of the indebtedness evidenced by promissory note or notes of even date herewith, and extension or renewal thereof, in the principal sum of \$6,922,500.00 executed by Trustor in favor of Beneficiaries or order; (c) payment of additional sums and interest thereon which may hereafter be loaned to Trustor, or his successors or assigns, when evidenced by a promissory note or notes reciting that they are secured by this Deed of Trust.

The following terms and conditions are incorporated herein by reference.

The undersigned Trustor requests that a copy of any notice of default and any notice of sale hereunder be mailed to him at the address set forth above, or as later provided to the Trustee by Trustor.

Signature of Trustor

GLOBAL COMMUNITY COMMUNICATIONS
ALLIANCE, an Arizona Non-Profit Corporation

By: Anthony J. Delvin
Its: Parrot & P. J. Delvin

ASD

STATE OF ARIZONA)
> ss.
County of Yavapai)

This instrument was acknowledged before me this 22nd day of March, 2007
by Anthony J. Delerm, Pastor - President (title), on behalf of Global
Community Communications Alliance, an Arizona non-profit corporation.

IN WITNESS WHEREOF I have set my hand and official seal.

Linda Wallace
Notary Public

My Commission Expires:
June 6, 2009



TERMS AND CONDITIONS

TO PROTECT THE SECURITY OF THIS DEED OF TRUST, TRUSTOR AGREES:

1. To keep said property in good condition and repair; not to remove or demolish any building thereon; to complete or restore promptly in good and workmanlike manner any building which may be constructed, damages or destroyed thereon, and to pay when due all claims for labor performed and materials furnished therefor; to comply with all laws affecting said property or requiring any alterations or improvements to be made thereon; not to commit or permit waste thereof; not to commit, suffer or permit any act upon said property in violation of law; and do all other acts which from the character or use of said property may be reasonably necessary, the specific enumerations herein not excluding the general.

2. To provide, maintain and deliver to Beneficiary fire insurance satisfactory to and with loss payable to Beneficiary. The amount collected under any fire or other insurance policy may be applied by Beneficiary upon any indebtedness secured hereby and in such order as Beneficiary may determine, or at option of Beneficiary the entire amount so collected or any part thereof may be released to Trustor. Such application or release shall not cure or waive any default or Notice of Trustee's Sale hereunder or invalidate any act done pursuant to such notice.

3. To appear in and defend any action or proceeding purporting to affect the security hereof, or the rights or powers of Beneficiary or Trustee; and to pay all costs and expenses of Beneficiary and Trustee, including cost of evidence of title and attorney fees in a reasonable sum, in any such action or proceeding in which Beneficiary or Trustee may appear or be named, and in any suit brought by Beneficiary to foreclose this Deed of Trust.

4. To pay: Before delinquent, all taxes and assessments affecting said property; when due, all encumbrances, charges and liens, with interest, on said property or any part thereof, which appear to be prior or superior hereto; all costs, fees and expenses of this Trust, including, without limitation, the generality of the foregoing, the fees of Trustee for issuance of any Deed of Partial Release and Partial Reconveyance or Deed of Release and Full Reconveyance, and all lawful charges, costs and expenses in the event of reinstatement or following default in, this Deed of Trust or the obligations secured hereby.

ASD

Should Trustor fail to make any payment or do any act as herein provided, then Beneficiary or Trustee, but without obligation so to do, and without notice to or demand upon Trustor, and without releasing Trustor from any obligation hereof, may: make or do the same in such manner and to such extent as either may deem necessary to protect the security hereof, Beneficiary or Trustee being authorized to enter upon said property for such purposes; appear in and defend any action or proceeding purporting to affect the security hereof or the rights or powers of Beneficiary or Trustee; pay, purchase, contest or compromise any encumbrance, charge or lien which in the judgment of either appears to be prior or superior hereto; and, in exercising any such powers, pay necessary expenses, employ counsel, and pay reasonable attorney fees.

5. To pay immediately and without demand all sums expended by Beneficiary or Trustee pursuant to the provisions hereof, together with interest from date of expenditure at the same rate as is provided for in the note secured by this Deed of Trust or at the highest legal rate, whichever be the greater rate. Any amount so paid by Beneficiary or Trustee shall become a part of the debt secured by this Deed of Trust and a lien on said premises or immediately due and payable at option of Beneficiary or Trustee.

IT IS MUTUALLY AGREED:

6. That any award of damages in connection with any condemnation or any such taking, or for injury to the property by reason of public use, or for damages for private trespass of injury thereto, is assigned and shall be paid to Beneficiary as further security for all obligations secured hereby (reserving unto the Trustor, however, the right to sue therefor and the ownership thereof subject to this Deed of Trust), and upon receipt of such monies, Beneficiary may hold the same in the same manner and with the same effect as above provided for disposition of proceeds of fire or other insurances.

7. That time is of the essence of this Deed of Trust, and that by accepting payment of any sums secured hereby after its due date, Beneficiary does not waive his right either to require prompt payment when due of all other sums so secured, or to declare default for failure so to pay. This Deed of Trust secures Maker's obligation to pay a certain promissory note of even date. In the event Maker sells the secured real property, that note is due and payable immediately.

8. That at any time or from time to time, and without notice, upon written request of Beneficiary and presentation of this Deed of Trust and said note(s) for endorsement, and without liability therefor, and without affecting the personal liability of any person for payment of the indebtedness secured hereby, and without affecting the security hereof for the full amount secured hereby on all property remaining subject hereto, and without the necessity that any sum representing the value or any portion thereof of the property affected by the Trustee's actions be credited on the indebtedness, the Trustee may: (a) Release and reconvey all or any part of said property; (b) consent to the making and recording, or either, of any map or plat of the property or any part thereof; (c) join in granting any easement thereon; (d) join in or consent to any extension agreement or any agreement subordinating the lien, encumbrance or charge hereof.

9. That upon written request of Beneficiary stating that all sums secured hereby have been paid, and upon surrender of this Deed of Trust and said note(s) to Trustee for cancellation and retention, and upon payment of its fees, Trustee shall release and reconvey, without covenant or warranty, express or implied, the property then held hereunder. The recitals in such reconveyance of any matters or facts shall be conclusive proof of the truthfulness thereof. The Grantee in such reconveyance may be described as "the person or persons legally entitled thereto."

10. That while this Deed of Trust secures said Note, Trustor shall only list the property with a licensed realtor pre-approved by the Beneficiary.



11. That as additional security, Trustor(s) hereby give to and confer upon Beneficiary the right, power, and authority, during the continuance of this Trust, to collect the property income, reserving the Trustor(s) the right, prior to any default by Trustor(s) in payment of any indebtedness secured hereby or in performance of any agreement hereunder, to collect and retain such property income as it becomes due and payable. Upon any such default, Beneficiary may at any time, without notice, either in person, by agent, or by a receiver to be appointed by a court, and without regard to the adequacy of any security for the indebtedness hereby secured, enter upon and take possession of said property or any part thereof, in his own name, sue for or otherwise collect such property income, including that past due and unpaid, and apply the same, less costs and expenses of operation and collection, including reasonable attorney fees, upon any indebtedness secured hereby, and in such order as Beneficiary may determine. The entering upon and taking possession of said property, the collection of such property income, and the application thereof as aforesaid, shall not cure or waive any default or Notice of Trustee's Sale hereunder or invalidate any act done pursuant to such notice.

12. That upon default by Trustor(s) in the payment of any indebtedness secured hereby, or in performance of any agreement hereunder, Beneficiary may declare all sums secured hereby immediately due and payable by delivery to Trustee of written notice thereof, setting forth the nature thereof, and of election to cause to be sold said property under this Deed of Trust. Beneficiary also shall deposit with Trustee this Deed of Trust, said note(s), and all documents evidencing expenditures secured hereby.

Trustee shall record and give Notice of Trustee's Sale in a manner required by law, and after the lapse of such time as may then be required by law, Trustee shall sell, in the manner required by law, said property at public auction at the time and place fixed by it in said Notice of Trustee's Sale to the highest bidder in cash in lawful money of the United States, payable as required by law. Trustee may postpone or continue the sale by giving Notice of Postponement or Continuance by public declaration at the time and place last appointed for the sale. Trustee shall deliver to such purchaser its deed conveying the property so sold, but without any covenant or warranty, express or implied. Any persons, including Trustor, Trustee or Beneficiary may purchase at such sale.

After deducting all costs, fees and expenses of Trustee and of this Trust, including cost of evidence of title connection with sale and reasonable attorney fees, Trustee shall apply the proceeds of sale to payment of: All sums then secured hereby and all other sums due under the terms hereof, with accrued interest; and the remainder if any, to the person or persons legally entitled thereto, or as provided in ARS § 33-812. To the extent permitted by law, an action may be maintained by Beneficiary to recover a deficiency judgment for any balance due hereunder.

In the alternative to foreclosure by Trustee's Sale, the Beneficiary may foreclose by judicial proceedings, and in such event, the election to declare the unpaid balance immediately due and payable may be made in the Complaint. In such judicial proceedings, Beneficiary shall be entitled to reasonable attorney fees, costs of foreclosure report and all sums advanced, with interest, as provided under Paragraph 4 and 5 herein.

13. That Beneficiary may appoint a successor trustee in the manner prescribed by law. A successor trustee herein shall, without conveyance from the predecessor Trustee, succeed to all the predecessor's title, estate, rights, powers and duties. Trustee may resign by mailing or delivering notice thereof to Beneficiary and Trustor(s).

14. That this Deed of Trust applies to, inures to the benefit of, and binds all parties hereto, their heirs, legatees, devisees, administrators, executors, successors and assigns. The term Beneficiary shall mean the owner and holder of the note(s) secured hereby, whether or not named as Beneficiary herein. In this Deed of Trust whenever the context so requires, the masculine gender includes the feminine and neuter, and the singular number includes the plural.

15. That Trustee accepts this Trust when this Deed of Trust, duly executed and acknowledged is made public record as provided by law. Trustee is not obligated to notify any party hereto of pending sale under any other Deed of Trust or of any action or proceeding in which Trustor(s), Beneficiary or Trustee shall be a party unless brought by Trustee.

A handwritten signature in black ink, appearing to be 'ASD', written over a horizontal line.

EXHIBIT "A"

Parcel I

All of that certain parcel of land lying within the North Half of Baca Float No. 3, Santa Cruz County, Arizona, and described as follows:

Beginning at the intersection of fences marking the corner of Sections 19 and 20, 29 and 30, Township 21 South, Range 13 East, Gila and Salt River Base and Meridian, Santa Cruz County, Arizona;

Thence South 3,747 feet;

Thence South 41 degrees 24 minutes East, 31 feet;

Thence with the river meander South 16 degrees 10 minutes East, 210 feet to the TRUE POINT OF BEGINNING;

Thence North 16 degrees 10 minutes West, 210 feet;

Thence North 41 degrees 24 minutes West, 31 feet;

Thence North 3,747 feet to the intersection of the fences marking the corner of Sections 19 and 20, 29 and 30;

Thence East 610 feet to a point on the East boundary line of the Southern Pacific Railroad right-of-way;

Thence South along the East right-of-way line of the Southern Pacific Railroad, 610 feet;

Thence East 710 feet;

Thence continuing East 210 feet to the Northeast corner of the tract described in Deed Book 19 at Page 361 thereof;

Thence Southwesterly 1,680 feet, more or less, to a point on the East boundary line of the William Lowe farm as referred to in Deed Book 19 at Page 361 thereof;

Thence South along the said East boundary line of the William Lowe farm to a point 1,350 feet North of the Southeast corner of the former William Lowe farm;

EXHIBIT "A"
(Continued)

Thence Southeasterly 1,590 feet, more or less, to a point 750 feet East of the Southeast corner of the former William Lowe farm; being the Southeast corner of the parcel described in Deed Book 17 at Page 450 thereof;

Thence Westerly by a straight line to the TRUE POINT OF BEGINNING, as said line is determined and described in Deed Book 32 at Page 525 thereof;

Except that portion thereof lying within the right-of-way of the Southern Pacific Railroad; and

FURTHER Excepting therefrom that portion that was conveyed on September 26, 2001 in Docket 890 at Page 781.

Parcel II

All that certain tract or parcel of land in Baca Float, situated in Santa Cruz County, Arizona, bounded and described as follows:

Beginning at a point 1,334.5 feet South of the corner of Sections 29, 30, 31 and 32, Township 21 South, Range 13 East, Gila and Salt River Base and Meridian and the North line of that certain tract known as the Karns Tract;

Thence West along said line 460.91 feet to a point on the East bank of the Santa Cruz River;

Thence North 13 degrees 26 minutes West, 132.35 feet to a point;

Thence North 1 degree 32 minutes West, 167.95 to a point;

Thence North 6 degrees 18 minutes East, 123.8 feet to a point;

Thence North 4 degrees 05 minutes West, 199.52 feet to a point;

Thence North 1 degree 56 minutes East, 149.45 feet to a point;

Thence North 6 degrees 30 minutes West, 162.27 feet to a point;

Thence North 11 degrees 43 minutes East, 154.2 feet to a point;

Thence North 20 degrees 41 minutes East, 480.95 feet to a point;

Thence North 29 degrees 58 minutes East, 279.05 feet to a point;

EXHIBIT "A"
(Continued)

Thence North 31 degrees 33 minutes East, 179.63 feet to a point;

Thence North 15 degrees 46 minutes East, 103.50 feet to a point;

Thence North 29 degrees 31 minutes East, 81.40 feet to a point;

Thence North 19 degrees 05 minutes East, 207.15 feet to a point;

Thence North 11 degrees 20 minutes East, 174.32 feet to a point;

Thence North 10 degrees 36 minutes West, to a point on the Northerly line of that certain parcel described in Docket Book 55 at Page 34 (said Northerly line having been established by agreement recorded in Book 32 of Deeds at Page 525);

Thence Easterly along said Northerly line to its intersection with the Westerly line of the Tucson-Nogales Railway;

Thence Southerly along the said Westerly line to its intersection with the Southerly line of that certain parcel described in Docket Book 55 at Page 34;

Thence West along the said Southerly line, a distance of 274.69 feet to the POINT OF BEGINNING.

PARCEL III:

The Northerly portion of Lot A in Block 464 of RIO RICO ESTATES UNIT NO. 16, a subdivision of Santa Cruz County, Arizona, according to the map or plat thereof of record in the office of the County Recorder of Santa Cruz County, Arizona, in Book 3 of Maps and Plats at page 18 thereof, said Northerly portion being more particularly described as follows:

COMMENCING at the Northwest corner of said Lot A;

THENCE South 7 degrees 20 minutes 25 seconds West, a distance of 60.48 feet, to the POINT OF BEGINNING;

THENCE South 7 degrees 20 minutes 25 seconds West, a distance of 522.82 feet;

THENCE North 88 degrees 03 minutes 35 seconds East, a distance of 527.92 feet, to the West right-of-way of Pendleton Drive;

EXHIBIT "A"
(Continued)

THENCE North 0 degrees 23 minutes 57 seconds East, a distance of 479.80 feet, along the West right-of-way of Pendleton Drive;

THENCE North 44 degrees 49 minutes 35 seconds West, a distance of 30.00 feet;

THENCE South 89 degrees 56 minutes 44 seconds West, a distance of 443.01 feet to the POINT OF BEGINNING.

PARCEL IV:

A non-exclusive perpetual easement for ingress and egress and any other uses not inconsistent with the use of the property for road purposes (which use may include but not be limited to use by pedestrians and motor vehicles), over, upon and across the Northerly portion of Lot A in Block 464 of RIO RICO ESTATES UNIT NO. 16, a subdivision of Santa Cruz County, Arizona, according to the map or plat thereof of record in the office of the County Recorder of Santa Cruz County, Arizona, in Book 3 of Maps and Plats at page 18 thereof, said Northerly portion being more particularly described as follows:

COMMENCING at the Northwest corner of said Lot A and the POINT OF BEGINNING;

THENCE South 7 degrees 20 minutes 25 seconds West, a distance of 60.48;

THENCE North 89 degrees 56 minutes 44 seconds East, a distance of 443.01 feet;

THENCE South 44 degrees 49 minutes 35 seconds East, a distance of 30.00 feet to the West right-of-way of Pendleton Drive;

THENCE North 0 degrees 23 minutes 57 seconds East, a distance of 81.30 feet, along the West right-of-way of Pendleton Drive;

THENCE South 89 degrees 56 minutes 44 seconds West, a distance of 457.00 feet, to the POINT OF BEGINNING.

PARCEL V:

A non-exclusive perpetual easement for ingress and egress and any other uses not inconsistent with the use of the property for road purposes (which

EXHIBIT "A"
(Continued)

use may include but not be limited to use by pedestrians and motor vehicles), as created by reservation in Warranty Deed recorded in Docket 890, page 781.

A.P.N 112-45-002-A